

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

Section 2.2 — Ontario: *The Accessibility for Ontarians with Disabilities Act, 2005*

Section 2.1 established the federal floor. Section 2.2 examines the longest-running provincial analogue: the *Accessibility for Ontarians with Disabilities Act, 2005* (AODA). The AODA is significant for this Part Two analysis for three reasons. It was the first comprehensive provincial accessibility legislation in Canada, predating the federal *Accessible Canada Act* by fourteen years. It established the legislative template that subsequent provincial accessibility statutes — in Manitoba, Nova Scotia, British Columbia, Saskatchewan, and Newfoundland and Labrador — have adapted and built upon. And it has produced, in twenty years of operation, a documented record of both achievement and failure that no other Canadian provincial accessibility regime can yet match.

The AODA's record matters for this comparator analysis precisely because it is mixed. The Act's twenty-year statutory deadline for full provincial accessibility — January 1, 2025 — passed during the year before this blueprint was written, and Ontario acknowledged, through successive independent reviews, that the deadline had not been met. The AODA's implementation history is, in this sense, a cautionary record as much as a celebratory one. The cautionary lessons are integral to what Part Three will propose for Alberta. Comprehensive accessibility legislation is necessary but not sufficient. Statutory structure must be combined with sustained political commitment, adequate enforcement resources, and ongoing accountability mechanisms. The AODA's twenty-year record establishes both what the structure makes possible and what its absence guarantees.

The relevant point for this section is that even Ontario's mixed implementation has produced a public, structured, statutorily-mandated record of accessibility work over two decades. Alberta has no equivalent. Ontario's failures to fully achieve its 2025 deadline are documented because the deadline existed in legislation and required statutory review. Alberta has no deadline, no required review, no statutory structure for documentation of its failures. The AODA's imperfect implementation has nevertheless produced more public accountability for disability-policy outcomes in Ontario than any mechanism currently exists for in Alberta. That fact is the prosecutorial weight Section 2.2 carries forward into the rest of Part Two.

Origin and Passage

The AODA was passed by the Ontario Legislative Assembly on June 13, 2005, under the Liberal government of Premier Dalton McGuinty. The legislation was enacted unanimously across all parties represented in the Assembly. The unanimous passage reflected more than a decade of disability-community advocacy in Ontario, led most prominently by the Ontarians with Disabilities Act Committee (ODAC) and subsequently by the AODA Alliance, an advocacy coalition chaired by David Lepofsky, a blind lawyer and long-standing disability rights activist.

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The pre-legislative advocacy in Ontario had succeeded in passing an earlier and weaker statute, the *Ontarians with Disabilities Act, 2001* (ODA), under the Progressive Conservative government of Premier Mike Harris. The 2001 ODA covered only the public sector, was widely criticized by the disability community as inadequate, and lacked enforcement mechanisms. The 2005 AODA was, in effect, the legislative answer to those criticisms: it covered both public and private sectors, applied to organizations with one or more employees, established a framework for binding accessibility standards developed through structured committee processes, included statutory enforcement authority, and committed the province to a defined deadline for full accessibility compliance.

The AODA's stated purpose, set out in Part I of the Act, is *to develop, implement and enforce standards for accessibility related to goods, services, facilities, accommodation, employment, buildings, structures and premises by January 1, 2025*. The 2025 deadline was, when the Act was passed, twenty years in the future. The expectation embedded in the legislative design was that two decades was sufficient time to develop standards, sequence implementation across organizational classes, and achieve substantial accessibility across the province by the statutory deadline. The design's twenty-year horizon was, in 2005, considered ambitious. By 2025, it would be considered, by both the disability community and the independent reviewers appointed under the Act, insufficiently realized.

The 2005 unanimous passage is itself relevant to the Part Two comparator analysis. Comprehensive accessibility legislation is not, in Canadian provincial practice, a partisan issue at the moment of enactment. The Ontario statute was passed by Liberals with Progressive Conservative and New Democratic support. The federal *Accessible Canada Act* (Section 2.1) was passed under Liberals with multi-party support. The Manitoba, Nova Scotia, British Columbia, and Saskatchewan statutes (Sections 2.3 through 2.6) were passed across various governing parties without significant partisan opposition. Alberta's absence from this list is not, on the legislative record, a function of partisan ideology. The accessibility legislation has been passed by governments of every major Canadian political tradition. The choice to not pass it is an Alberta-specific choice, not a Conservative-versus-Liberal-versus-NDP choice. The point recurs throughout Part Two and is taken up directly in Section 2.7.

The Five Standards

The AODA's substantive content is delivered through five accessibility standards, each developed by a Standards Development Committee, each codified through regulation, and each enforceable against organizations covered by the standard. The five standards, after consolidation under the *Integrated Accessibility Standards Regulation* (IASR, Ontario Regulation 191/11) in 2011, are: the *Customer Service Standard*, the *Employment Standard*, the *Information and Communications Standard*, the *Transportation Standard*, and the *Design of Public Spaces Standard* (built environment).

The *Customer Service Standard* was the first standard developed under the AODA, in force from January 1, 2010 for the public sector and January 1, 2012 for the private sector. The standard requires covered organizations to develop policies for providing accessible customer service, train staff on accessibility, accommodate service animals and support persons, provide accessible feedback mechanisms, and make information about the organization's accessibility policies publicly available.

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The *Employment Standard* requires covered employers to provide accessible recruitment, hiring, and onboarding processes; develop individual accommodation plans for employees with disabilities; provide accessible workplace information and emergency response information; and consider accessibility in performance management, career development, and redeployment processes.

The *Information and Communications Standard* requires covered organizations to make their public-facing information accessible. The standard mandated, for organizations with 50 or more employees, full Web Content Accessibility Guidelines (WCAG) 2.0 Level AA compliance for all public-facing web content by January 1, 2021. Subsequent WCAG versions are also incorporated by reference. The standard also covers accessible feedback processes, accessible formats and communication supports on request, and accessible educational and training resources.

The *Transportation Standard* covers conventional and specialized transportation services, including municipal public transit, school transportation, and taxi services. The standard requires accessible vehicles and stations, training for transportation personnel, accessible fare collection mechanisms, and equivalent service standards for specialized transit serving riders with disabilities.

The *Design of Public Spaces Standard* covers the built environment for new construction and major redevelopment, including recreational trails, beach access routes, outdoor public eating areas, outdoor play spaces, exterior paths of travel, accessible parking, service counters, fixed queuing guides, and waiting areas. The standard supplements the Ontario Building Code, which sets minimum accessibility requirements for buildings; the AODA standard adds requirements specific to public spaces.

Each standard has been periodically reviewed by Standards Development Committees including persons with disabilities, sector representatives, and public members. The review process is structured to identify gaps in the standard's coverage, identify implementation difficulties, and recommend amendments to the responsible Minister. The review timelines are mandated in the legislation; review is not optional.

The Implementing Institutions

The AODA establishes a multi-institution implementation framework. The institutions and their roles include the following.

The Accessibility Directorate of Ontario. The Directorate is the unit within the responsible provincial ministry — currently the Ministry for Seniors and Accessibility — that handles day-to-day administration of the Act, supports the Standards Development Committees, processes compliance reports, and coordinates the broader implementation work across government.

Standards Development Committees. Each accessibility standard has a Standards Development Committee responsible for the original drafting of the standard, periodic review of the standard, and recommendations for amendment. Committee membership is required to include persons with disabilities and representatives of the affected sectors. The committee process is the legislative codification of the *Nothing Without Us* principle within the AODA framework.

The Accessibility Standards Advisory Council. The Council is an advisory body that provides input to the responsible Minister on the standards review process and on broader accessibility policy matters. The

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Council includes persons with disabilities and other stakeholders.

The Director under the Act. The Director is a position under the AODA empowered to issue compliance orders, conduct inspections, and require organizations to provide information necessary for compliance assessment. The Director's orders are enforceable; non-compliance can result in administrative monetary penalties.

Independent Reviewers. Section 41 of the AODA requires that the Lieutenant Governor in Council appoint a person to conduct an independent review of the effectiveness of the Act and its regulations every three years. Each review must report to the responsible Minister, who must make the report public and respond to its findings. Four such reviews have been conducted to date: by Charles Beer (2010), Mayo Moran (2014), David Onley (2019), and Rich Donovan (2023). The reviews are statutory, not discretionary.

The License Appeal Tribunal. The Tribunal hears appeals of orders issued by the Director under the Act, providing an independent review mechanism for organizations contesting compliance findings.

The architecture distributes accessibility responsibility across multiple bodies and embeds public accountability through mandated reviews. The structural design, like the federal ACA's, is intended to prevent any single point of institutional failure from collapsing the broader implementation. The design has worked, structurally, in the sense that the institutions exist, the reviews have been produced, and the public record has been generated. Whether the implementation has worked, substantively, is the question the reviews have repeatedly answered with increasing scepticism.

The Compliance and Enforcement Architecture

The AODA's compliance architecture requires covered organizations to meet the standards applicable to them on the timelines codified in regulation. The compliance is monitored through a self-reporting mechanism: organizations are required to file *accessibility compliance reports* with the Ministry on a fixed cycle.

Public sector organizations file compliance reports every two years. Private sector organizations and non-profits with 20 or more employees file every three years. The reports certify compliance with the applicable standards as of the reporting date and identify any non-compliance. The reports are filed online through the Ministry's compliance portal.

The Ministry conducts audits of filed compliance reports and of organizations more broadly. The most recent annual report on the AODA, covering 2024, documented that ministry staff performed more than 1,000 audits, issued 19 compliance orders, and assessed one administrative monetary penalty during the reporting period.

The penalty authority under the AODA is substantial on paper. The Act permits administrative monetary penalties of up to \$50,000 per day for individuals (such as directors and officers) and up to \$100,000 per day for corporations found in non-compliance. The maximum cumulative exposure under the penalty regime is significant. The actual use of the penalty authority — one penalty in the most recent reporting year, against more than 1,000 audits — has been a primary subject of disability-community criticism

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throughout the AODA's operational history.

The enforcement gap is documented and acknowledged. David Lepofsky, who chairs the AODA Alliance and who led the original advocacy for the 2005 legislation, has stated publicly that the Ontario government has *passed some regulations, some accessibility standards. But they are way too weak, way too narrow, and they don't cover the vast majority of barriers we face.* Lepofsky has further documented that the enforcement architecture has not been used at the scale the legislation makes available. The 1,000-audit / 19-order / 1-penalty pattern is not a record of vigorous enforcement; it is a record of a compliance architecture that exists on paper and is implemented with limited resources, limited political prioritization, and limited consequence for non-compliance.

The relevant point for this Part Two analysis is not that the AODA's enforcement is exemplary — it isn't — but that an enforcement architecture exists at all, that audits are conducted, that compliance orders can be issued, that monetary penalties can be assessed, and that the documented gap between the architecture's potential and its operational use is itself a public-record fact subject to disability-community advocacy and successive independent review. Alberta has no architecture to underuse. The underuse, where it exists in Ontario, is a problem inside a structure. In Alberta, the absence is the structure.

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FOUR INDEPENDENT STATUTORY REVIEWS — TWENTY YEARS OF DOCUMENTED ACCOUNTABILITY

Beer Review (2010) — First statutory review, conducted by former Ontario cabinet minister Charles Beer five years into the Act's operation. Documented early standards-development pace; recommended acceleration. Tone largely constructive.

Moran Review (2014) — Second review, conducted by Mayo Moran (then Dean, University of Toronto Faculty of Law). Documented continuing implementation gaps; recommended strengthened compliance, enforcement, and built-environment coverage.

Onley Review (2019) — Third review, conducted by former Lieutenant Governor of Ontario David Onley, who lived with the effects of childhood polio. Fifteen recommendations including faster standards development, increased enforcement, training architects on inclusive design, and educating children on accessibility. Acknowledged Ontario was very far from meeting the 2025 deadline.

Donovan Review (2023) — Fourth review, conducted by Rich Donovan. Used the word *crisis* to describe Ontario's accessibility status. Documented the routine fire-drill example in which employees using wheelchairs and with vision impairments were directed to a closet rather than the regular evacuation route. Recommended substantial restructuring of AODA implementation.

The reviews are statutory, not discretionary. Section 41 of the AODA requires independent review every three years. Each report becomes a public document the Minister must respond to. Four reviews together constitute the most substantial public record of accessibility-implementation accountability ever generated by a Canadian province. **No equivalent accountability mechanism exists for any aspect of Alberta's disability policy architecture.**

The Four Independent Reviews

Section 41 of the AODA mandates independent reviews every three years. Four reviews have been conducted since the Act's passage. Each review has been more critical of implementation than the one before. The reviews together constitute the most substantial public record of accessibility-implementation accountability ever generated by a Canadian province.

The Beer Review (2010). Conducted by former Ontario cabinet minister Charles Beer, the first review was published five years into the Act's operation. The review documented the early pace of standards development and made recommendations for accelerating implementation. The review's tone was largely constructive; the Act was still in its initial phase of operationalization.

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The Moran Review (2014). Conducted by Mayo Moran, then Dean of the University of Toronto Faculty of Law, the second review was published nine years into the Act's operation, with the 2025 deadline still over a decade away. The review documented progress on standards development and identified continuing implementation gaps. The review made recommendations for strengthening compliance and enforcement, addressing the built environment more comprehensively, and improving the standards-development process.

The Onley Review (2019). Conducted by David Onley, who served as Lieutenant Governor of Ontario from 2007 to 2014 and who lived with the effects of childhood polio, the third review was published with the 2025 deadline only six years away. The Onley Review made fifteen recommendations, including training architects on inclusive design, faster design and implementation of standards, overhauling outdated digital standards, increasing enforcement, educating children on accessibility, and increasing financial incentives for compliance. The Onley Review's tone was substantially more urgent than the previous two; the review acknowledged that Ontario was very far from meeting the 2025 deadline as legislatively committed.

The Donovan Review (2023). Conducted by Rich Donovan, a Toronto-based disability rights advocate and entrepreneur, the fourth review was published with less than two years remaining before the 2025 deadline. The Donovan Review used the word *crisis* to describe Ontario's accessibility status. The review documented the gap between the AODA's goals and the province's actual progress, including a documented example of a routine fire drill at a government office in which employees using wheelchairs and with vision impairments were directed to a closet rather than to the regular evacuation route. The Donovan Review made recommendations for substantially restructuring the AODA's implementation, including greater coordination with federal accessibility legislation, more aggressive enforcement, and a reframing of accessibility as a crisis-mode policy priority.

The four reviews together establish the public record. The reviews were produced because the legislation required them. The reviews were published because the legislation required publication. The reviews were responded to (in varying degrees of substantive engagement) by the Minister because the legislation required response. The accumulating evidence of implementation shortfall has been documented in writing, by independent reviewers, on a structured timeline, for twenty years. No equivalent accountability mechanism exists for any aspect of Alberta's disability policy architecture. The closest Alberta equivalent — the 2024 *Denied by Design* report by the Office of the Alberta Ombudsman — is a one-off investigation, not a recurring statutorily-mandated review. The ongoing accountability that the AODA's review architecture has produced for Ontario is, in Alberta, nonexistent.

The 2025 Deadline and What It Did and Did Not Achieve

January 1, 2025, was the statutory deadline for full accessibility under the AODA. The deadline passed during the year before this blueprint was written. Ontario did not, on January 1, 2025, become a fully accessible province. The disability community, advocacy organizations, and the most recent independent review had documented the shortfall in advance; the deadline's passage was not a surprise. What the deadline did achieve, however, was something the disability community and the legislation's authors had built into the original 2005 design: the production of a structured public moment in which the gap between

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commitment and achievement could be measured, named, and used as the basis for renewed accountability.

In the days following January 1, 2025, the major Canadian press covered the deadline's passage extensively. The Globe and Mail published feature reporting on the deadline, including direct interviews with David Lepofsky and other long-time advocates. CBC News produced multiple stories across regional outlets. The Toronto Star produced a comprehensive review of where Ontario stood across each of the AODA's five standard areas. Each report documented the same finding: the province had not met the deadline, the documented reasons were political and administrative rather than legislative, and the disability community continued to demand accountability. The press coverage itself is part of the AODA's record. The legislation's deadline produced a national news moment in which accessibility shortfall was the headline. No equivalent moment exists for Alberta's disability policy because Alberta has no legislative deadline against which to measure shortfall.

The 2025 deadline's substantive failure should not, however, obscure what the AODA has actually accomplished in twenty years of operation. Ontario has, under the AODA, codified five binding accessibility standards. The province has built the largest accessible public transit fleet in Canada, including the more than 2,200 accessible buses cited by the Ministry for Seniors and Accessibility. Public-facing websites of large organizations are required, by law, to meet WCAG 2.0 Level AA compliance, with documented enforcement against non-compliant organizations. Customer service training for accessible interactions is required across all sectors with one or more employees. Accommodation processes for employees with disabilities are required. The Ontario Building Code has been updated multiple times in response to AODA implementation. The standards are imperfect, the enforcement is uneven, the deadline has been missed; none of this is the same as no architecture at all. Twenty years of imperfect architecture have produced, in Ontario, a substantive accessibility infrastructure that no Alberta equivalent exists to deliver.

What the Ontario Record Establishes

The AODA's twenty-year record establishes three findings directly relevant to the blueprint Part Three will propose for Alberta.

The first is that **legislation works**. Even imperfectly implemented, even underused, even with deadline shortfalls, the AODA has produced binding standards, mandated reports, structured reviews, public accountability moments, and a substantive accessibility infrastructure across the most populous province in Canada. The legislative architecture matters. It has produced outcomes that no comparable advocacy effort, in the absence of legislation, could have produced. The Ontario record is empirical proof of this proposition.

The second is that **legislation alone is insufficient**. The AODA's structural design is, in many respects, robust: distributed implementing institutions, mandated reviews, codified standards, defined enforcement authority, statutory deadline. The implementation has nevertheless fallen short of the deadline. The reasons are political (insufficient ministerial commitment across multiple governments), administrative (under-resourced enforcement), and substantive (standards that the disability community considers too narrow). The lessons for Alberta are direct: any future Alberta accessibility legislation must build in not

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only the structural architecture the AODA pioneered but also stronger commitments on enforcement, resourcing, and standards-development scope. Part Three takes these lessons forward into the proposed Alberta legislation.

The third is that **the existence of legislation is its own form of public accountability infrastructure**. The AODA's 2025 deadline produced a national accountability moment that no equivalent moment exists for in Alberta because no equivalent legislation exists. The Donovan Review's *crisis* finding is a public document with statutory standing. The Lepofsky and AODA Alliance advocacy is grounded in citation to the legislation's own provisions. The disability community's ongoing pressure on the Ontario government has a legislative anchor that the disability community in Alberta does not have. The legislation is the platform on which all subsequent advocacy stands. Without the platform, advocacy is not impossible — the campaign producing this document is evidence to the contrary — but it is, structurally, harder, less sustainable, and more dependent on the personal energy of individual advocates than the institutional architecture of the legislation itself.

The Ontario record is, on balance, an argument for Alberta to build the legislation. The Ontario record's failures are not an argument against legislation; they are an argument for legislation that addresses the documented Ontario shortfalls. Part Three will draw on the AODA's architecture for what to keep and on the AODA's documented gaps for what to strengthen. Alberta has the advantage of building twenty-one years after Ontario did. The advantage should be used.

What This Section Establishes

The *Accessibility for Ontarians with Disabilities Act*, 2005 was Canada's first comprehensive provincial accessibility legislation. The Act passed unanimously in the Ontario Legislative Assembly. It established five binding accessibility standards covering customer service, employment, information and communications, transportation, and the design of public spaces. It created a multi-institution implementation framework including the Accessibility Directorate, Standards Development Committees, an Accessibility Standards Advisory Council, statutory enforcement through the Director, and statutorily-mandated independent reviews every three years. It set a twenty-year deadline (January 1, 2025) for substantial provincial accessibility compliance. It established administrative monetary penalty authority of up to \$100,000 per day for corporations and up to \$50,000 per day for directors and officers. It produced thousands of organizational compliance reports, four independent statutory reviews, and a substantive public accountability infrastructure that no other Canadian province had at the time of its enactment and that Alberta still has no equivalent to in 2026.

The 2025 deadline passed without being met. The disability community, the most recent independent review (the Donovan Review of 2023), and successive press coverage have documented the implementation gap. The gap is a public-record fact, available for public response and the basis for ongoing political pressure. The gap exists because the legislation that created the deadline exists. Without the legislation, there would be no deadline, no reviews, no documented gap, and no accountability mechanism.

Section 2.3 examines the second-longest-running provincial accessibility statute: Manitoba's *Accessibility for Manitobans Act*, passed in 2013 and modeled, in significant respects, on the AODA's architecture.

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Manitoba's experience refines the picture by introducing a smaller-scale jurisdiction, a different political context, and a documented set of choices about what to keep and what to alter from the Ontario template. The provincial-comparator survey continues from there.